

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JONAIKY QUEZADA,

Index No.

Date Purchased:

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, and DETECTIVE LOUIS
D'AMBROSIO and DETECTIVE "JOHN DOE" from
THE NEW YORK CITY POLICE DEPARTMENT,

Defendants.
-----X

Plaintiff, JONAIKY QUEZADA, by his attorneys, STEINBERG & GRUBER, P.C.,
complaining of the defendants herein, respectfully alleges upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. Upon information and belief, at all times hereinafter mentioned, plaintiff was and
still is a resident of the County, City and State of New York.

2. Upon information and belief, at all times hereinafter mentioned, THE CITY OF
NEW YORK, is a municipal corporation organized and existing under and by virtue of the laws
of the State of New York.

3. Upon information and belief, at all times hereinafter mentioned, the defendant,
THE NEW YORK CITY POLICE DEPARTMENT, is a municipal corporation organized and
existing under and by virtue of the laws of the State of New York.

4. Prior to the commencement of this action, the plaintiff on May 20, 2015, within
ninety (90) days after the cause of action accrued, and more than thirty (30) days prior to the
commencement of action, presented, served and filed a Notice of Claim with the defendants,

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, DETECTIVE LOUIS D'AMBROSIO and DETECTIVE "JOHN DOE" from THE NEW YORK CITY POLICE DEPARTMENT, for adjustment of damages sustained by the plaintiff herein and upon which this action is based. A copy of the Notice of Claim is annexed hereto as *Exhibit "A"*. To date, the defendants have neglected and refused to make adjustments thereon.

5. The statutory hearing of the plaintiff was held on September 29, 2015 by the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

6. That on or about March 2, 2015 at approximately 7:48 PM in front of 1536 Amsterdam Avenue, in the County, City and State of New York, the plaintiff was unlawfully restrained, imprisoned, assaulted, battered, humiliated and unlawfully arrested, all without the members of THE NEW YORK CITY POLICE DEPARTMENT having probable cause to make such arrest and without THE NEW YORK CITY POLICE DEPARTMENT conducting a proper and full investigation.

7. Plaintiff was detained against plaintiff's will until plaintiff's release from custody on March 12, 2015.

8. That upon information and belief, at all times hereinafter mentioned, defendants, DETECTIVE LOUIS D'AMBROSIO and DETECTIVE "JOHN DOE", were employees of THE NEW YORK CITY POLICE DEPARTMENT.

9. That, upon information and belief, at all times hereinafter mentioned, defendants, DETECTIVE LOUIS D'AMBROSIO and DETECTIVE "JOHN DOE", were acting within the scope of their employment.

10. That at all times hereinafter mentioned, this plaintiff was assaulted by defendants,

DETECTIVE LOUIS D'AMBROSIO and DETECTIVE "JOHN DOE", without justification.

11. That at all times hereinafter mentioned, defendants, DETECTIVE LOUIS D'AMBROSIO and DETECTIVE "JOHN DOE", knowingly and maliciously caused injury to this plaintiff, resulting in plaintiff sustaining severe personal injuries.

12. That at all times hereinafter mentioned, there was no justification of excuse for the violent and willful assault by defendants, DETECTIVE LOUIS D'AMBROSIO and DETECTIVE "JOHN DOE", of this plaintiff.

13. That by reason of the foregoing, plaintiff sustained multiple physical, personal and emotional injuries, loss of employment, including loss of liberty, emotional distress, loss of enjoyment of life and humiliation, the full extent of which are not presently known. Plaintiff felt grave fear and intimidation for his safety. Plaintiff was deprived of freedom and liberty, was falsely arrested and imprisoned, where plaintiff sustained emotional harm, fear and anxiety.

14. Solely as a result of the foregoing, plaintiff JONAIKY QUEZADA, has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action.

***AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE ARREST***

15. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs of the Complaint herein designated "1" through "14" with the same force and effect as if fully set forth at length herein.

16. That the aforescribed action by the defendants, their agents, servants and/or employees deprived plaintiff of his liberty.

17. Acting under color of law, defendants worked a denial of plaintiff's rights,

privileges or immunities secured by the United States Constitution or by Federal law, to wit, by (a) depriving plaintiff of his liberty without due process of law, by taking him into custody and holding him there against his will; (b) by conspiring for the purpose of impeding and hindering the due course of justice, with intent to deny plaintiff equal protection of laws; and (c) by refusing or neglecting to prevent such deprivations and denials to plaintiff, thereby depriving plaintiff of his rights, privileges, and immunities as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

18. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, negligently trained defendants, NEW YORK CITY POLICE OFFICERS, DETECTIVE LOUIS D'AMBROSIO and DETECTIVE "JOHN DOE", members/employees of THE NEW YORK CITY POLICE DEPARTMENT.

19. There was no warrant for the arrest of plaintiff on March 2, 2015. The arrest was without reasonable grounds for said defendants to believe plaintiff had committed an offense and defendants knew they were without probable cause to arrest plaintiff, JONAIVY QUEZADA.

20. No complaint, information, or indictment was ever sworn against plaintiff alleging offenses occurring prior to the moment defendants, THE NEW YORK CITY POLICE DEPARTMENT, DETECTIVE LOUIS D'AMBROSIO and DETECTIVE "JOHN DOE", handcuffed plaintiff and placed him under arrest.

21. As a result of their concerted unlawful and malicious arrest by defendants, plaintiff was deprived of both his liberty without due process of law and his right to equal protection of the laws, and the due course of justice was impeded, in violation of the Fifth and Fourteenth Amendments of the Constitution of the United States and 42 U.S.C. §1983.

22. Solely as a result of the foregoing, plaintiff demands judgment for the false arrest

against all defendants in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction, including attorney's fees, and for such other and further relief that this Court deems just and equitable.

***AS AND FOR A THIRD CAUSE OF ACTION FOR
DETENTION AND CONFINEMENT***

23. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs of the Complaint herein designated "1" through "22" with the same force and effect as if fully set forth at length herein.

24. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees, and each of them, deprived plaintiff of the following rights, privileges and immunities:

- a. The right of plaintiff to be secure in their person and effects against unreasonable search and seizure;
- b. The right of plaintiff to be informed of the nature and cause of the accusation against them;
- c. The right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws.

25. As a result of their concerted unlawful and malicious detention and confinement of plaintiff, defendants deprived plaintiff of both his right to his liberty without due process of law and his right to equal protection of the laws, and the due course of justice was impeded, in violation of the Fifth and Fourteenth Amendments of the Constitution of the United States and 42 U.S.C. §1983.

26. Solely as a result of the foregoing, plaintiff demands judgment for the false detention and confinement against all defendants in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction, including attorney's fees, and

for such other and further relief that this Court deems just and equitable.

***AS AND FOR A FOURTH CAUSE OF ACTION FOR VIOLATIONS OF
42 U.S.C. 1983: REFUSING OR NEGLECTING TO PREVENT***

27. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs of the Complaint herein designated "1" through "26" with the same force and effect as if fully set forth at length herein.

28. At all times relevant to this complaint, defendants, DETECTIVE LOUIS D'AMBROSIO and DETECTIVE "JOHN DOE" were acting under the direction and control of the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

29. Acting under color of law and pursuant to official policy or custom, defendants knowingly, recklessly, or with gross negligence failed to instruct, supervise, control, and discipline on a continuing basis defendants Detectives in their duties to refrain from:

- a. unlawfully and maliciously harassing a citizen who was acting in accordance with his constitutional and statutory rights, privileges, and immunities;
- b. unlawfully and maliciously arresting, imprisoning and prosecuting a citizen who was acting in accordance with his constitutional and statutory rights, privileges, and immunities;
- c. conspiring to violate the rights, privileges, and immunities guaranteed to plaintiff by the Constitution and laws of the United States and the laws of the City of New York; and
- d. otherwise depriving plaintiff of his constitutional and statutory rights, privileges and immunities.

30. Defendants had knowledge or, had they diligently exercised their duties to instruct, supervise, control and discipline on a continuing basis, should have had knowledge that the wrongs conspired to be done, as heretofore alleged, were about to be committed. Defendants

had power to prevent or aid in preventing the commission of said wrongs, could have done so by reasonable diligence, and knowingly, recklessly, or with gross negligence failed or refused to do so.

31. Defendants directly or indirectly, under color of law, approved or ratified the unlawful, deliberate, malicious, reckless, and wanton conduct of Defendant police officers and/or Detectives heretofore described.

32. As a direct and proximate cause of the negligent and intentional acts of defendants, plaintiff suffered physical injury, loss of income, and severe mental anguish in connection with the deprivation of his constitutional and statutory rights guaranteed by the Fifth and Fourteenth Amendments of the Constitution of the United States and protected by 42 U.S.C. §1983.

33. Solely as a result of the foregoing, plaintiff demands judgment for the refusing or neglecting to prevent the aforementioned against all defendants in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction, including attorney's fees, and for such other and further relief that this Court deems just and equitable.

***AS AND FOR A FIFTH CAUSE OF ACTION FOR
MALICIOUS ABUSE OF PROCESS***

34. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs of the Complaint herein designated "1" through "33" with the same force and effect as if fully set forth at length herein.

35. Defendants maliciously used a "legal process" to accomplish some ulterior purpose for which it was not designed or intended, or which was not the legitimate purpose of the particular process employed.

36. Plaintiff committed no criminal offense or other offense and no police officer/detective could have objectively believed that plaintiff committed any offense under the law to justify a stop, let alone an arrest, a custodial arrest, incarceration and detention, the preferral of any charges, including but not limited to criminal sale of a controlled substance in the Third Degree, and his criminal prosecution associated with the preferral of those criminal charges.

37. There was no basis for the stop, arrest and custodial arrest of plaintiff by New York City police officers, DETECTIVE LOUIS D'AMBROSIO and DETECTIVE "JOHN DOE", each of whom is an agent and employee of defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

38. There was no justification to handcuff plaintiff, to detain plaintiff for the period of time he was held in custody until he appeared at his arraignment when and where he was released without bail and required to return to court thereafter when and where the charge preferred against plaintiff was eventually dismissed and the records sealed.

39. Solely as a result of the foregoing, plaintiff demands judgment for the malicious abuse of process against all defendants in an amount which exceeds the jurisdictional limits to all other courts which would otherwise have jurisdiction, including attorney's fees, and for such other and further relief that this Court deems just and equitable.

***AS AND FOR A SIXTH CAUSE OF ACTION FOR
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS***

40. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs of the Complaint herein designated "1" through "39" with the same force and effect as if fully set forth at length herein.

41. Defendants intentionally and deliberately inflicted emotion distress on plaintiff,

JONAIVY QUEZADA, by maliciously prosecuting plaintiff, or by abusing the lawful process by unlawful purpose, or by violating plaintiff's constitutional rights, or by falsely arresting and imprisoning the plaintiff, by conspiring against plaintiff, or by interfering with plaintiff's state civil rights by threats, coercion, or intimidation, or knew or should have known that emotional distress was the likely result of their conduct.

42. Defendants conduct was extreme and outrageous, beyond all possible bounds of decency and utterly intolerable in a civilized community.

43. Defendants' intentional and outrageous conduct caused plaintiff to suffer severe emotional distress.

44. Plaintiff's arrest was humiliating and embarrassing, and induced stress and anxiety in plaintiff.

45. Plaintiff's arrest and the pendency of the criminal court proceeding, until it was dismissed, induced additional stress and anxiety, was emotionally distressful, and otherwise publically humiliating and embarrassing.

46. As a proximate result of the foregoing, plaintiff sustained severe and protracted emotional injuries, was incapacitated from pursuing his normal tasks, experienced great emotional pain and suffering, all which plaintiff believes will continue in the future, all to his detriment and loss in an amount which exceeds the jurisdictional limits of all other courts.

47. Solely as a result of the foregoing, plaintiff demands judgment for the intentional infliction of emotional distress against all defendants in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction, including attorney's fees, and for such other and further relief that this Court deems just and equitable.

***AS AND FOR A SEVENTH CAUSE OF ACTION FOR
GROSS NEGLIGENCE***

48. Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs of the Complaint herein designated "1" through "47" with the same force and effect as if fully set forth at length herein.

49. Defendants owed a duty to supervise or train the officers and to take steps to prevent events such as occurred here, to wit, the false arrest and imprisonment and the swearing to charges without probable cause.

50. Defendants owed a duty to act according to the standard of ordinary care of a police officer, to wit, to conduct a proper investigation, the failure of which was the proximate cause of plaintiff's injury.

51. Defendants breached that duty by failing to act as ordinary police officers/detectives would act to wit, by failing to perform their duties and by defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT by failing adequately to control and to supervise its officers/detectives.

52. As a result of those breaches,, which were the proximate causes of plaintiff's injury, plaintiff, JONAIKY QUEZADA, suffered harm and damages.

53. Solely as a result of the foregoing, plaintiff demands judgment for gross negligence against all defendants in an amount which exceeds the jurisdictional limits of all other courts which would otherwise have jurisdiction, including attorney's fees, and for such other and further relief that this Court deems just and equitable.

WHEREFORE, plaintiff demands judgment against all defendants as follows:

1. on the first cause of action in an amount which exceeds the jurisdictional limits of

all lower courts which would otherwise have jurisdiction over this action;

2. on the second cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action;

3. on the third cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action;

4. on the fourth cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action;

5. on the fifth cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action;

6. on the sixth cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action;

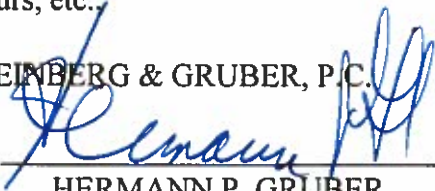
7.. on the seventh cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action; and

8. Together with the costs and disbursements of this action and such other and further relief as the Court deems just and proper.

Dated: Garden City, New York
November 13, 2015

Yours, etc.,

STEINBERG & GRUBER, P.C.

By: 

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